



## CHAPTER 1.

An Act to amend the law relating to local elections in its application to persons who are or have been engaged in service outside the United Kingdom.

[24th August 1945.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where under the law relating to any local election the consent of a candidate is required to be given to his nomination, a candidate who, being a member of the forces or a seaman, is outside the United Kingdom, or who is engaged in war work abroad, may comply with that requirement by sending a telegram consenting to his nomination. Consent to nomination by telegram.

(2) Where a candidate gives his consent to nomination by telegram under the preceding subsection, his consent need not be attested, but the telegram must be sent on or within one month before the last day for the delivery of nomination papers and must be delivered at the place and within the time appointed for the delivery of nomination papers.

(3) The provisions of this section shall have effect in addition to, and not in substitution for, any other provision whereby consent to nomination at a local election may be given by telegram.

2.—(1) Where any person is elected to any of the following offices, that is to say— Extension of time for acceptance of office.

- (a) chairman of a county council, county alderman or county councillor ;

- (b) mayor, alderman or councillor of a borough ;
- (c) chairman of a district council or district councillor ;

at a time when he is a member of the forces or a seaman, and, in either case, is outside the United Kingdom, or at a time when he is engaged in war work abroad, then, in determining for the purposes of section sixty-one of the Local Government Act, 1933, whether a declaration of acceptance of the office has been made and delivered within the period of two months prescribed by that section, the section shall have effect as if for the reference in subsection (1) thereof to the day of the election there were substituted a reference to the first day after the election on which he is present in the United Kingdom or to the first anniversary of the day of the election, whichever is the earlier, and the reference in subsection (2) thereof to "the appointed time" shall be construed accordingly.

23 & 24  
Geo. 5. c. 51.

(2) This section shall have effect in relation to a local election if, and only if, the day of the election occurs during the period beginning two months before the date of the passing of this Act and ending with the expiry of this Act.

(3) In the application of this section to London—

- (a) the expression "borough" shall include a metropolitan borough ; and
- (b) for the reference to section sixty-one of the Local Government Act, 1933, there shall be substituted a reference to section thirty-six of the London Government Act, 1939.

2 & 3 Geo. 6.  
c. 40.

Extension of  
time for  
claiming and  
paying election  
expenses and  
for making  
returns and  
declarations as  
to election  
expenses.  
47 & 48 Vict.  
c. 70.

3.—(1) Where it appears to the returning officer at any local election the day of which occurs after the passing of this Act—

- (a) that, under subsection (1), subsection (2) or subsection (3) of section twenty-one of the Municipal Elections (Corrupt and Illegal Practices) Act, 1884 (which relate to claims in respect of expenses incurred at local elections, to the payment of such expenses, and to the making of returns and declarations as to such expenses), the period limited for the sending or making of any claim, payment, return or declaration has expired ; and
- (b) that the said period ought, in relation to any candidate, to be extended on the ground that the candidate is or has been serving outside the United Kingdom as a member of the forces or as a seaman, or on the ground that the candidate is or has been engaged in war work abroad ;

the returning officer shall direct that, in relation to that candidate and for the purposes of that election, the said section twenty-one

shall have effect as if for the period so limited there were substituted such extended period as the returning officer thinks reasonable in the circumstances.

(2) The provisions of this section shall have effect in addition to, and not in substitution for, any other provision whereby relief may be granted in respect of a failure to comply with the provisions of the said section twenty-one.

(3) The references in the preceding provisions of this section to the said section twenty-one shall be deemed to include references to that section as extended by any other enactment.

4.—(1) In this Act, except where the context otherwise requires— Interpretation.

“local election” means an election of a county councillor, borough councillor, metropolitan borough councillor, urban district councillor, rural district councillor or parish councillor ;

“member of the forces” means any member of the armed forces of the Crown, of the Women’s Royal Naval Service, of the Queen Alexandra’s Royal Naval Nursing Service, or of any other organization established under the control of the Admiralty, the Army Council or the Air Council ;

“seaman” means a person employed or engaged, or ordinarily employed or engaged, on sea-going ships (other than vessels for the time being employed in sea-fishing or in the sea-fishing service) whether British or not, as the master or as a member of the crew thereof.

(2) For the purposes of this Act, a person shall be deemed to be engaged in war work abroad if either—

(a) he is for the time being registered in the National Register as a person engaged in war work abroad ; or

(b) not being so registered, he is for the time being certified in accordance with subsection (2) of section three of the Representation of the People Act, 1945, to have been a member of the forces (as defined for the purposes of the Parliamentary Electors (War-Time Registration) Act, 1943) but to have ceased to be such a member at a time when he was outside the United Kingdom, and to be engaged on work of national importance outside the United Kingdom in connection with any war in which His Majesty may be engaged. 8 & 9 Geo. 6.  
c. 5.  
6 & 7 Geo. 6.  
c. 48.

Application to  
Scotland.

5. In the application of this Act to Scotland—

- (a) For section one the following section shall be substituted :—

“ 1. Any enactment relating to election to the office of councillor whereby a nomination paper is required to be signed by or on behalf of the candidate nominated shall, in the case of a candidate who, being a member of the forces or a seaman, is outside the United Kingdom, or who is engaged in war work abroad, be deemed to be complied with, if a telegram consenting to his nomination is sent by him and is received by or delivered to the person, at the place and within the time to or with whom and at and within which the nomination paper is required to be delivered or lodged.”

- (b) For subsection (1) of section two the following subsection shall be substituted :—

“ (1) Where any person is elected to the office of councillor at a time when he is a member of the forces or a seaman, and, in either case, is outside the United Kingdom, or at a time when he is engaged in war work abroad, any enactment requiring a declaration or intimation of acceptance of office to be made by him by a specified time, shall have effect as if it required such declaration or intimation to be made within one month from the first day after the election on which he is present in the United Kingdom or within one year after the election, whichever of those periods is the shorter.”

- (c) Section three shall have effect as if for the reference to section twenty-one of the Municipal Elections (Corrupt and Illegal Practices) Act, 1884, there were substituted a reference to section twenty-five of the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890.

- (d) The expression “ local election ” means an election of a councillor, and the expression “ councillor ” means a county, town, or district councillor.

53 & 54 Vict.  
c. 55.

Short title,  
expiry and  
extent.

6.—(1) This Act may be cited as the Local Elections (Service Abroad) Act, 1945.

- (2) This Act shall remain in force until the end of December, nineteen hundred and forty-seven, and shall then expire :

Provided that—

- (a) in relation to any election the day of which occurs not later than the end of December, nineteen hundred and

forty-seven, this Act shall continue to have effect as if it had not then expired ; and

- (b) where the day of any local election occurs after the end of December, nineteen hundred and forty-seven, but a person has consented to his nomination at that election by a telegram which, before that time, has been duly received or delivered in accordance with the requirements of section one of this Act, the said section shall have effect in relation to the consent so given as if this Act has not then expired.

- (3) This Act shall not extend to Northern Ireland.

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